

Public Service Commission Act, 2022

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 16

Public Service Commission Act, 2079

Date of Certification

2079.03.31

Act No. 3 of the year 2079

An Act Made to Amend and Consolidate Laws Relating to the Public Service Commission

Preamble: Whereas, it is desirable to amend and consolidate the laws relating to the functions, duties and powers of the Public Service Commission in a timely manner in order to promote the system of cleanliness, impartiality and merit in the selection of suitable candidates for posts in the Federal Civil Service, security bodies, other Federal government services and organized institutions, and to make the public administration competent, strong, service-oriented;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Public Service Commission Act, 2079".

(2) This Act shall come into force on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Appointing authority" means the officer authorized by law to make appointments to, or impose departmental punishment for, any post.

(b) "Chairperson" means the Chairperson of the Commission.

(c) "Other Federal government services" means the services of the Government of Nepal formed by Federal law, other than posts in the Federal Civil Service and security bodies.

(d) "Commission" means the Public Service Commission constituted pursuant to Article 242 of the Constitution.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Constitution" means the Constitution of Nepal.

(g) "Organized institution" means a corporation, company, bank, committee or commission, authority, corporation, enterprise, board, center, council and other organized institutions of a similar nature established pursuant to Federal law, formed by the Government of Nepal or in which the Government of Nepal has ownership or control of fifty percent or more shares or assets, excluding universities and the Teachers Service Commission.

(h) "Post in the Federal Civil Service" means all posts in the service of the Government of Nepal except posts

in the service of employees of security bodies or posts in other Federal government services specified by law not to be civil service posts.

(i) "Member" means a member of the Commission and the term also includes the Chairperson.

(j) "General principles" means the general principles issued by the Commission for the purpose of providing advice pursuant to clauses (3) and (4) of Article 243 of the Constitution.

(k) "Security bodies" means the Nepali Army, Nepal Police, Armed Police Force, Nepal and the National Investigation Department. Chapter-2

Functioning and Management of the Commission

3.

Office of the Commission: (1) There shall be one central office of the Commission for the functioning and management of the Commission. (2) The office pursuant to sub-section (1) shall be located in the Kathmandu Valley. (3) The organizational structure and staffing of the Commission shall be as approved by the Government of Nepal on the recommendation of the Commission based on workload and justification. (4) The offices of the Commission existing at the time of commencement of this Act shall remain as they are until otherwise provided. 4. Meeting of the Commission: (1) All work to be done by the Commission pursuant to the Constitution, this Act and other prevailing laws shall be done by the decision of the Commission. (2) The meeting of the Commission shall be chaired by the Chairperson. (3) A meeting of the Commission may be held if more than fifty percent of the current number of members are present. (4) Decisions in a meeting of the Commission shall be by majority; in case of a tie, the person chairing the meeting shall have a casting vote. (5) Decisions of the Commission shall be certified by the Secretary of the Commission. (6) Other procedures relating to meetings of the Commission shall be as determined by the Commission. 5. Division of work: The division of work of the Chairperson and Members shall be as determined by the Commission. 6. Acting in the absence: If the office of the Chairperson becomes vacant for any reason, or if the Chairperson is on leave, or if the situation under clause (6) of Article 101 of the Constitution arises preventing the Chairperson from performing functions, or if the Chairperson is absent from the Commission for any other reason, the most senior Member of the Commission shall act as the Acting Chairperson. 7. Provisions relating to employees: (1) Employees as per the approved posts shall be provided by the Government of Nepal for the functioning and management of the Commission. (2) An employee working in the Commission who has gained expertise in any specialized work, or who needs to maintain special confidentiality, or who holds a special responsibility, shall be transferred to another office only after consultation with the Commission. 8. Obtaining advice, consultation: The Commission may consult with or seek the opinion of any constitutional body, any ministry, department or office of the Government of Nepal, or any organized institution regarding its work. 9.

Defense: The Commission may, on its behalf, file petitions, institute cases, or prepare necessary documents for cases, use the services of the Attorney General or government attorneys, or, on the advice of the Attorney General, use the services of other legal practitioners for defense in any court. Chapter-3 Educational Qualifications and Curriculum 10. Determination of educational qualifications: (1) The minimum educational qualifications required for posts to be filled in the Federal Civil Service, security bodies, other Federal government services and organized institutions shall be as mentioned in the relevant service and conditions law. (2) Before prescribing the minimum educational qualifications required for posts to be filled in the Federal Civil Service, security bodies, other Federal government services and organized institutions pursuant to

sub-section (1), the concerned body shall obtain the advice of the Commission. (3) Notwithstanding anything contained in the prevailing law, the matter whether an educational qualification obtained by a candidate from any university or educational institution is equivalent to the educational qualification determined for any post of the relevant service, group or sub-group shall be as decided by the Commission. (4) Decisions made by the Commission pursuant to sub-section (3) shall also apply to other candidates with equivalent educational qualifications. 11. Curriculum and examination method: (1) Provisions relating to the curriculum, weightage, pass marks, examination method and publication of results of examinations taken by the Commission for filling vacant posts in the Federal Civil Service shall be as prescribed. (2) Provisions relating to the curriculum, weightage, pass marks, examination method and publication of results of written examinations taken by the Commission for filling vacant posts in security bodies, other Federal government services or organized institutions shall be as prescribed. Chapter-4 Provisions Relating to Candidate Selection 12. Method of selecting candidates: While selecting suitable candidates for filling vacant posts in the Federal Civil Service, in addition to the written examination, the Commission may adopt the following methods of examination according to the nature of the work of the post:- (a) Practical examination, (b) Interview, (c) Other methods prescribed by the Commission from time to time. 13. Requisition for filling posts: (1) For filling vacant posts in the Federal Civil Service, the concerned body shall send a requisition form as prescribed to the Commission, mentioning the relevant service, group, sub-group, class, number of posts, job description and minimum qualifications. (2) The procedure relating to the requisition for filling posts shall be as determined by the Commission. 14.

Consent required: Before publishing an advertisement for filling vacant posts in security bodies, other Federal government services and organized institutions, the concerned body shall obtain the consent of the Commission. 15. Determination of number of posts: (1) While filling vacant posts in the Federal Civil Service, the Commission shall determine the number of posts to be filled by open competition, promotion or other means as mentioned in the service and conditions law, according to the percentage mentioned in such law. (2) While determining the number of posts to be filled by open competition pursuant to sub-section (1), the Commission shall determine such number as to be in accordance with the principle of proportional inclusion as mentioned in the service and conditions law. 16. Publication of advertisement: After the number of posts is determined pursuant to Section 15, the Commission shall publish separate advertisements for filling posts by open competition, promotion or other means. 17. Rejection of application: (1) If an application submitted by a candidate in accordance with the advertisement published by the Commission pursuant to Section 16 is not in the prescribed format, not in order, or does not have the qualifications as determined by the Commission, the Commission may, at any time before the publication of final results, reject such application. (2) Notwithstanding anything contained in sub-section (1), if the application format is incorrect or the application is not in order, the Commission shall notify the concerned candidate of such fact, and if the concerned candidate corrects the format or completes the formalities within seven days from the expiry of the deadline for submitting applications, the Commission may accept such application. (3) Information stating the reason for rejection of an application pursuant to sub-section (1) shall be given to such candidate, and the Commission shall publish a notice of that fact on its website. 18. Cancellation or amendment of advertisement or examination: (1) If the concerned body, before conducting the examination, makes a written request with reasonable cause for the cancellation or amendment of the advertisement stating that filling posts according to the advertisement published by the Commission is not necessary or the posts are not required, the Commission may cancel or amend such advertisement or cause it to be amended. (2) If there is any irregularity of any kind at the center where the examination is being conducted by the Commission, or if an examination cannot be conducted partially or fully due to any hindrance or obstruction, the Commission

may, stating the reason therefor, cancel or postpone the partial or whole examination related to the relevant advertisement. 19.

Refund of examination fee: (1) If an application is rejected pursuant to Section 17, or if an advertisement is cancelled pursuant to sub-section (1) of Section 18, the examination fee taken by the Commission for such advertisement shall be refunded to the concerned person. (2) A person entitled to a refund of the examination fee pursuant to sub-section (1) shall submit an application with necessary documents to the body that published the advertisement within the prescribed period. 20. Question paper preparation: (1) The preparation or moderation of question papers required for examinations conducted by the Commission shall be according to the standards determined by the Commission. (2) The qualifications of the subject expert for preparing or moderating question papers pursuant to sub-section (1), the conditions to be observed by him/her, and other provisions shall be as determined by the Commission. 21. Examination may be conducted in stages: The Commission may conduct examinations jointly or separately or in stages for any post of any service, group and sub-group specified by the Commission among the posts in the Federal Civil Service. 22. Written examination for security bodies, other Federal government services or organized institutions: (1) The Commission shall conduct the written examination for filling posts in security bodies, other Federal government services or organized institutions and publish its results. (2) For the written examination taken by the Commission for filling vacant posts in organized institutions, the Commission may, based on the number of candidates, conduct a pre-qualifying examination. 23. Special provisions relating to examination: If an examinee who has a disability or physical weakness causing difficulty in participating in an examination conducted by the Commission informs the Commission of such fact before the examination is conducted, the Commission may make special arrangements to facilitate the participation of such examinee in the examination. 24. Format of answer sheets and conditions to be observed by candidates: The format of answer sheets and the conditions to be observed by candidates shall be as prescribed. 25. Code number on answer sheets: (1) After the completion of a written or practical examination taken by the Commission, a code number shall be placed on the answer sheets according to the prescribed procedure. (2) For the purpose of evaluating answer sheets through an electronic system, a barcode may be used on the answer sheets. (3) If a barcode is used pursuant to sub-section (2), a separate code number need not be placed. 26.

Evaluation of answer sheets: (1) After placing code numbers on the answer sheets pursuant to Section 25, the answer sheets shall be evaluated by subject experts or qualified persons. (2) The qualifications of the subject expert or qualified person evaluating the answer sheets, the conditions to be observed, or the place of evaluation shall be as determined by the Commission. (3) Answer sheets written contrary to the instructions given by the Commission or contrary to the format and conditions of the answer sheets prescribed pursuant to Section 24 shall not be evaluated. 27. Results of written or practical examination: (1) While publishing the results of a written or practical examination, the Commission shall mention the names, surnames and roll numbers of the candidates who have obtained the highest marks in such examination held pursuant to Section 12, in the number prescribed in proportion to the vacant posts, among the candidates who have passed such examination, in alphabetical order, and publish the result. (2) While publishing the result pursuant to sub-section (1), the program and date of the interview and other examinations to be taken in various stages shall also be mentioned. (3) Notwithstanding anything contained in sub-section (2), while publishing the results of a written examination for security bodies, other Federal government services or organized institutions, after sealing the marks obtained by the candidates, the result shall be published through the Commission's website, and the list of candidates who have passed for the practical examination or interview pursuant to sub-section (1) shall be sent to the concerned body. (4) The Commission shall send the sealed marks obtained pursuant to sub-section (3) to the concerned body for publication of final results

only after the practical examination or interview is completed. 28. Formation of Interview Committee: (1) The Commission shall form an Interview Committee as prescribed for selecting candidates for filling vacant posts in the Federal Civil Service. (2) While forming an Interview Committee pursuant to sub-section (1), in the case of the central office, it shall be formed under the chairmanship of the Chairperson or a Member designated by him/her. (3) While forming an Interview Committee pursuant to sub-section (1), the Interview Committee shall include at least one subject expert having qualifications as prescribed in the relevant field. 29.

Publication of final results: (1) After the completion of all processes relating to the selection of candidates for filling posts in the Federal Civil Service, the Commission shall publish the final results in order of merit, mentioning the roll number, name, surname, address and the body recommended for the candidates who have obtained the highest marks. (2) While publishing the final result pursuant to sub-section (1), in the case of posts advertised under open and inclusive categories, the result for the open category shall be published first, followed by the result for the inclusive category, and while publishing the result in this manner, an integrated merit list based on the total marks obtained by the candidates shall also be published. (3) While publishing the result pursuant to sub-section (1), a list of alternate candidates in the prescribed number and a list of temporary candidates in the prescribed number among the candidates who have obtained the minimum pass marks but were not selected in the interview shall be published. (4) The alternate list pursuant to sub-section (3) shall remain valid for one year from the date of its publication, and the temporary list shall remain valid until another temporary list for the same post is published. 30. Recommendation for appointment: (1) The Commission shall recommend the candidates pursuant to sub-section (1) of Section 29 to the appointing authority for appointment in order of merit. (2) If, among the candidates recommended pursuant to sub-section (1), the recommendation for appointment of any candidate is voided pursuant to sub-section (3) of Section 38, or if that post becomes vacant within one year due to any other reason, the Commission shall recommend an alternate candidate for appointment in order of merit. (3) While recommending for temporary appointment from the list pursuant to sub-section (3) of Section 29, the candidates included in the alternate list who could not obtain permanent appointment shall be included in the first merit list. (4) If a candidate recommended for appointment pursuant to this Section fails to accept the appointment letter on two or more occasions, the Commission may debar such person from participating in examinations conducted by the Commission for a period of up to two years. 31.

Assistance to be provided to the Commission: (1) The Commission may engage employees of constitutional bodies, government bodies, educational institutions or organized institutions for the work of conducting and managing examinations. (2) For the work of conducting and managing examinations by the Commission, constitutional bodies, government bodies, educational institutions or organized institutions shall assist by making employees or buildings available. (3) If such employees are not available or are insufficient for the work of conducting and managing examinations pursuant to sub-section (1) or (2), the Commission may also take the help of other suitable persons. (4) Notwithstanding anything contained in the prevailing law, if it appears that the work of the Commission cannot be accomplished solely by its employees, the Commission may write to the body operating the service to depute employees working in other offices on secondment. (5) Upon receiving a letter from the Commission pursuant to sub-section (4), the concerned body shall provide assistance by deputing employees. 32. Use of electronic means: The Commission may use electronic means for works such as requisition for vacant posts, publication of advertisements for filling posts, conducting examinations, and publishing results. Chapter-5 Provisions Relating to Advice 33. Provision of advice: (1) The Commission shall provide advice on the subject of general principles to be adopted while promoting to posts in security bodies and other Federal government services. (2) The Commission shall provide advice on the subject of general principles to be adopted while making laws relating to the service conditions of

employees of any organized institution, while promoting to posts in such service, and while taking departmental action against employees. (3) For the purpose of providing advice pursuant to sub-section (1) or (2), the Commission may determine general principles that apply equally or separately according to the concerned body and the nature of the service of the employees. (4) The general principles determined by the Commission pursuant to sub-section (3) shall be made public. 34. Procedure to be adopted while seeking advice of the Commission: The procedure to be adopted while seeking the advice of the Commission pursuant to the Constitution or other prevailing laws shall be as prescribed. 35.

Procedure to be adopted by the Commission while providing advice: (1) If advice is requested from the Commission on matters of law relating to the service conditions of employees of the Federal Civil Service, the Commission may provide advice in a uniform or separate manner according to the nature and situation of the work of the Federal Civil Service. (2) If advice is requested from the Commission on the subject of general principles to be adopted while making appointments to or promotions in posts in the Federal Civil Service, or while taking departmental action against such service employees, the Commission shall provide advice after considering the principles determined in relation thereto. (3) If advice is requested from the Commission on the matter of imposing departmental punishment on an employee of the Federal Civil Service, the Commission shall, after examining whether the procedure prescribed under the prevailing law relating to service conditions has been completed, provide advice within thirty days. (4) If advice is requested on the following matters relating to the suitability of a candidate, the Commission shall, considering the nature of the work of the relevant service, test the suitability of the candidate as necessary by one or more of the methods mentioned in Section 12 and provide advice:- (a) When appointing to a post in the Federal Civil Service for a period of more than six months, (b) When transferring or promoting from one type of post in the Federal Civil Service to another type of post in the Federal Civil Service, or when transferring or promoting from a post in one group or sub-group of any service under the Federal Civil Service to a post in another group or sub-group, (c) When transferring or promoting from other government services to the Federal Civil Service, (d) When changing or transferring service from a post in the civil service of any Province to a post in the Federal Civil Service, or from a post in the Federal Civil Service to a post in the Provincial Civil Service, (e) When transferring or promoting an employee holding a post where the advice of the Commission is not required to a post where the advice of the Commission is required. 36.

Implementation of the advice of the Commission: (1) The responsibility of implementing or causing to be implemented the advice pursuant to Section 33 or sub-section (2), (3) or (4) of Section 35 shall be of the officer seeking the advice. (2) If, due to any special reason or situation, it becomes impossible to implement the advice given by the Commission, the officer seeking the advice may write to the Commission for reconsideration, stating the reasonable cause therefor. (3) If a letter is received for reconsideration pursuant to sub-section (2) and if it appears that the reason or situation for reconsideration is justified and reasonable, the Commission may provide further advice in relation thereto. (4) The advice received from the Commission regarding departmental punishment shall be implemented by the concerned officer within the period specified by the Commission, and the Commission shall be informed accordingly. 37. Monitoring and inspection: (1) The Commission shall prepare an annual action plan and monitor and inspect the following matters:- (a) Whether constitutional bodies or various ministries, secretariats, departments and offices of the Government of Nepal have complied with the Constitution and prevailing laws and the advice given by the Commission while making appointments, promotions and departmental actions, (b) Whether the advice given by the Commission on the subject of general principles to be adopted while promoting to posts in security bodies and other federal government services has been complied with, (c) Whether the advice given by the Commission on the subject of general principles to be adopted while making laws relating to the service

conditions of employees of organized institutions, while promoting to posts in such service, and while taking departmental action against employees has been complied with. (2) For the purpose of monitoring and inspection by the Commission pursuant to sub-section (1), the Commission or the Government of Nepal may depute employees at officer level. 38.

Correction or voidance of acts: (1) If any act is done without obtaining the advice of the Commission on a matter where the advice of the Commission is required pursuant to the Constitution, this Act and other prevailing laws, the Commission may void such act. (2) If, while monitoring or inspecting or causing to be monitored or inspected pursuant to Section 37, it is found that any employee has been appointed, promoted, or subjected to departmental action without fulfilling the procedure and conditions determined by the Constitution, this Act, other prevailing laws and the Commission, the Commission may order the correction or voidance of such appointment, promotion or departmental action. (3) If any details such as educational qualifications, age, basis of inclusion, submitted by any person for candidacy in an examination according to an advertisement published by the Commission or in an examination conducted by the Commission are found to be false or incorrect, the Commission shall void the application, examination, interview or recommendation for appointment of such candidate, and if such person has already obtained appointment, the Commission shall write to the concerned body to take necessary action as per the prevailing law. (4) If it is found that any person has been appointed to a post to be appointed under the authority delegated by the Commission without fulfilling the rules or procedures made under this Act or this Act, or the conditions specified by the Commission, the Commission may void such appointment at any time. Chapter-6 Offences and Punishments 39. Removal from work: (1) If an employee or person involved in conducting an examination under this Act commits any irregular act at the examination center, such employee or person shall be immediately removed from work. (2) The Commission may maintain a record of the employee or person removed from work pursuant to sub-section (1) and debar him/her from being involved in any examination-related work conducted by the Commission in the future. (3) The Commission shall publish the details of the employee or person removed from work pursuant to sub-section (1) on its website. 40. Expulsion: If any candidate cheats or causes cheating in an examination, copies another or causes another to copy, commits an irregular act in the examination using electronic devices, creates a commotion at the examination center obstructing the conduct of the examination, or violates the conditions and discipline relating to the examination, the center supervisor may immediately expel such candidate from the examination center. 41.

Offences and punishments: (1) If any person commits any of the following acts, he/she shall be deemed to have committed an offence under this Act:- (a) Cheating or causing cheating in an examination, copying another or causing another to copy, or committing an irregular act in the examination using electronic devices, (b) An examinee leaving with his/her answer sheet without submitting it, failing to return a question paper that the Commission has specified must be returned, making copies of such question paper or making it public through electronic means, (c) Entering or attempting to enter an examination center where the Commission is conducting an examination during the examination time specified by the Commission without the approval of the concerned official, or creating a commotion at the examination center obstructing the conduct of the examination, (d) Taking an examination in another's name or causing another to take the examination in his/her name, (e) Taking control of or attempting to take control of an examination center conducting examinations, or creating a disturbance or any other act at the examination center obstructing or attempting to obstruct the conduct of the examination, (f) Breaching or causing to breach the confidentiality of the examination in any manner. (2) If any person commits any of the following acts, the Commission may debar him/her from being a candidate in examinations taken by the Commission for the following periods:- (a)

For committing an act contrary to clause (a) of sub-section (1), up to two years, (b) For committing an act contrary to clause (b) of sub-section (1), up to three years, (c) For committing an act contrary to clause (c) of sub-section (1), up to four years, (d) For committing an act contrary to clause (d), (e) or (f) of sub-section (1), up to five years. (3) If any person commits an act of causing cheating in an examination contrary to clause (a) of sub-section (1) or commits an act contrary to clause (c) of sub-section (1), he/she shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to six months or both. (4) If any person commits an act contrary to clause (d), (e) or (f) of sub-section (1), he/she shall be liable to a fine of fifty thousand rupees to one hundred thousand rupees and imprisonment for three months to six months. (5) If a person debarred from examination pursuant to clause (a), (c) or (d) of sub-section (2) is acquitted by a court in a case under the offence pursuant to sub-section (3) or (4), such debarment shall be automatically lifted. 42.

Government of Nepal to be plaintiff: The case under sub-section (3) or (4) of Section 41 shall be a government case, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. Chapter-7 Miscellaneous 43. Annual report: (1) The Commission shall submit an annual report of its activities to the President within three months from the date of expiry of the fiscal year. (2) The report submitted pursuant to sub-section (1) shall mention the following matters:- (a) Quantitative details of the examinations taken to select candidates and the examinees who participated and passed, (b) The advice given by the Commission to various bodies and the status of implementation of such advice, (c) The advice given regarding departmental action and punishment against employees of the Federal Civil Service and the status of implementation of such advice, (d) The advice given on the subject of general principles to be adopted while making appointments, promotions and departmental action in posts of various services, and the status of implementation of such advice, (e) Matters that need to be improved in the service of the Federal Civil Service, other Federal government services and organized institutions, as well as other matters deemed necessary by the Commission. 44. Suggestions may be given: (1) If it appears necessary to improve the law relating to the service conditions of employees of the Federal Civil Service, other Federal government services or organized institutions, during the course of the Commission's work or based on study or research conducted by the Commission, the Commission may give suggestions to the concerned body. (2) The Commission may, from time to time, give necessary suggestions to the concerned body to make the management of the bodies related to the service of the Federal Civil Service, other Federal government services or organized institutions clean, impartial, competent, functional and effective. 45.

May write for departmental action: (1) The Commission may write to the concerned body for departmental action against an employee removed from work pursuant to sub-section (1) of Section 39. (2) If an offence under Section 40 is committed by an employee of the civil service, security body, other federal government service or organized institution, the Commission may write to the concerned body for departmental action against such employee. (3) If an offence under sub-section (1) of Section 41 is committed by any employee, such employee shall, in addition to the punishment under that Section, also be subject to departmental action under the prevailing law, and the Commission shall write to the concerned body for that purpose. (4) Upon receipt of a letter for departmental action pursuant to sub-section (1), (2) or (3), the appointing authority shall take departmental action against the concerned employee in accordance with the law relating to his/her service conditions within three months and inform the Commission thereof. 46. Appointment to be void: (1) If any person obtains a permanent appointment to a position entitled to pension from the Government of Nepal without the advice of the Public Service Commission, contrary to clause (5) of Article 243 of the Constitution, such appointment shall be void at any time. (2) If any person causes another person to take an examination in his/her place, the entire examination related to the relevant advertisement taken by such person shall be automatically void in respect of that person, and if any person has obtained an appointment based on the

recommendation from such taken examination, such appointment shall be void at any time. 47. May take services of subject experts or qualified persons: (1) For the work to be performed by the Commission, the services of subject experts, qualified persons or specialized bodies relating to the relevant subject may be taken. (2) For the purpose of taking services pursuant to sub-section (1), the nomination or selection of subject experts, qualified persons or specialized bodies shall be made by the Chairperson. (3) The subject expert, qualified person or specialized body whose services are taken pursuant to sub-section (1) shall be paid remuneration, facilities and service fees as determined by the Commission. 48. Expenditure under miscellaneous heading to be as per approved procedure: Notwithstanding anything contained in the prevailing law, expenditure of the amount allocated in the budget by the Government of Nepal for the Commission under the miscellaneous heading shall be made on the basis of a procedure made by the Commission with the consent of the Ministry of Finance, Government of Nepal.

Provided that if it is necessary to spend money for any urgent work relating to the conduct of examinations, expenditure may be made as per the decision of the Commission. 49. Fees or charges: (1) The fees for examinations taken while filling posts in the Federal Civil Service by open competition, promotion or any other means mentioned in the service and conditions law shall be as determined by the Commission.

(2) In addition to what is mentioned elsewhere in this Act, the Commission may prescribe necessary fees or charges in relation to its activities. 50. Coordination and cooperation: The Commission may enhance coordination or mutual relations and cooperation with national and international institutions established for a similar purpose. Provided that, for this purpose, the Commission shall contact any international institution through the Ministry of Foreign Affairs, Government of Nepal. 51. Representative of the Commission: There shall be a representative of the Commission on the Service Commission or committee formed for filling posts in the service of security bodies, other federal government services and organized institutions. 52. Confidentiality of documents: (1) Notwithstanding anything contained in the prevailing law, documents and papers relating to examinations conducted by the Commission shall remain confidential, and the Commission shall not be compelled to make such papers public except under a court order.

(2) Notwithstanding anything contained in sub-section (1), examination-related documents or details as determined by the Commission may be given to the concerned person, made public, or destroyed. 53. Delegation of powers: (1) If the Commission needs to delegate any of its functions, duties and powers among those under clause (8) of Article 243 of the Constitution to the Chairperson, any Member or an employee of the Government of Nepal, it shall delegate as prescribed, determining the conditions for the exercise and observance of such power.

(2) The power delegated pursuant to sub-section (1) may be withdrawn by the Commission at any time. 54. Complaint: (1) A person not satisfied with an act done by an officer acting under the authority delegated by the Commission may file a complaint with the Commission, stating the basis and reason, within thirty-five days from the date of such act.

(2) Upon receipt of a complaint pursuant to sub-section (1), the Commission shall make necessary inquiry into the matter and make an appropriate decision within a maximum of sixty days. 55.

Relationship between the Commission and Provincial Public Service Commission: (1) There shall be a coordinative relationship between the Commission and the Provincial Public Service Commissions. (2) The Commission may, from time to time, facilitate necessary discussions between the Chairpersons and Members of the Commission and Provincial Public Service Commissions to make the activities of the Provincial Public Service Commissions effective. (3) If any Provincial Public Service Commission requests

the assistance of the Commission regarding curriculum design, question paper preparation or any matter relating to examination, the Commission shall provide necessary assistance. (4) If any Provincial Public Service Commission wishes to have the work relating to the selection of suitable candidates completed by the Commission, and if a request is made by the concerned Provincial Government through the Government of Nepal, the Commission may conduct the examination-related activities of that Province. After the completion of the examination-related work conducted in this manner, the Commission shall send the relevant documents to the concerned Provincial Public Service Commission.

56. Contact with Government of Nepal: The Commission shall contact the Government of Nepal through the Office of the Prime Minister and Council of Ministers.

57. No adverse effect: Nothing contained in this Act shall affect any matter falling within the functions, duties and jurisdiction of the Judicial Service Commission.

58. May conduct research and promotional activities: The Commission may, from time to time, conduct research and promotional activities to make its work more competent and effective.

59. Power to make rules: (1) The Commission may make necessary rules for implementing this Act. (2) Without prejudice to the generality of sub-section (1), such rules may, in particular, provide